

Did Congress by the general language of its 1871 statute mean to overturn the tradition of legislative freedom achieved in England by Civil War and carefully preserved in the formation of State and National Governments here? Did it mean to subject legislators to civil liability for acts done within the sphere of legislative activity? Let us assume, merely for the moment, that Congress has constitutional power to limit the freedom of State legislators acting within their traditional sphere. That would be a big assumption. But we would have to make an even rasher assumption to find that Congress thought it had exercised the power. These are difficulties we cannot hurdle. The limits of §§ 1 and 2 of the 1871 statute—now §§ 43 and 47 (3) of Title 8—were not spelled out in debate. We cannot believe that Congress—itself a staunch advocate of legislative freedom—would impinge on a tradition so well grounded in history and reason by covert inclusion in the general language before us.

We come then to the question whether from the pleadings it appears that the defendants were acting in the sphere of legitimate legislative activity. Legislatures may not of course acquire power by an unwarranted extension of privilege. The House of Commons' claim of power to

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Pt. First, Art. 30th; N. J. Const., Art. IV, § IV, par. 8; N. M. Const., Art. IV, § 13; N. Y. Const., Art. III, § 11; N. D. Const., Art. II, § 42; Ohio Const., Art. II, § 12; Okla. Const., Art. V, § 22; Ore. Const., Art. IV, § 9; Pa. Const., Art. II, § 15; R. I. Const., Art. IV, § 5; S. D. Const., Art. III, § 11; Tenn. Const., Art. II, § 13; Tex. Const., Art. III, § 21; Utah Const., Art. VI, § 8; Vt. Const., c. I, Art. 14th; Va. Const., Art. IV, § 48; Wash. Const., Art. II, § 17; W. Va. Const., Art. VI, § 17; Wis. Const., Art. IV, § 16; Wyo. Const., Art. 3, § 16.

Compare Iowa Const., Art. III, § 10; N. C. Const., Art. II, § 17 (right of legislator to protest action of legislature). See also, Cal. Const., Art. IV, § 11; Iowa Const., Art. III, § 11; Miss. Const., Art. 4, § 48; Nev. Const., Art. IV, § 11; S. C. Const., Art. III, § 14 (freedom from arrest). Only the Florida Constitution has no provision concerning legislative privilege.